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November 19, 2019

BY ECF

The Honorable Paul G. Gardephe
United States District Judge

Re: *Deleon v. Pichardo and Delacruz*, 15 CV 9804 (PGG)

Dear Judge Gardephe:

As per the Court Order on November 8, 2019, plaintiff respectfully submits this letter.

Background of the Case:

This is a relatively straight-forward false arrest/malicious prosecution case. Defendants allege that plaintiff sold drugs (more specifically marijuana) to another individual ("Jessica G.") on August 26, 2019. Plaintiff was arrested and processed on August 29, 2019. Plaintiff denies that he sold drugs to Jessica G. on August 26, 2019.¹

Plaintiff's Pertinent Allegations in the Third Amended Complaint ("TAC"):

Plaintiff alleges that he was wrongfully arrested on August 29, 2014 for allegedly selling marijuana on August 26, 2014. Plaintiff further alleges being strip-searched and maliciously prosecuted for this charge because defendants forwarded false and fabricated paperwork to the DA's office and failed to retract the false paperwork resulting in plaintiff's unnecessary prosecution. *See Exhibit 1.*

¹ Plaintiff respectfully submits that this material disputed fact, alone, defeats any good-faith basis to file a motion for summary judgment and as further discussed in this letter..

Defendants' Pertinent Denials and Affirmative Defenses in Answer to TAC:

Defendants denied the allegations in the TAC. Defendants further stated that they did not violate any of [plaintiff's] rights, plaintiff (1) is responsible, (2) provoked or (3) contributed to his own constitutional violations and that the defendants acted lawfully and properly and there was probable cause to arrest, detain and prosecute plaintiff. *See Exhibit 2.*

NYPD Documents:

At the Court hearing, Your Honor inquired whether defendants intend to offer into evidence that drugs were recovered from Jessica G. and whether it was tested. Attached are NYPD documents that answer Your Honor's questions. It is clear that defendants accused plaintiff of selling drugs that later field tested positive for marijuana. It is also clear that the defendants filed sworn statements accusing plaintiff of selling drugs and then forwarding that information to the DA's office which resulted in plaintiff's prosecution before it was dismissed. *See Exhibit 3.*

Plaintiff's Pertinent Deposition Testimony:

Plaintiff testified that he was arrested few days after the alleged sale on August 26, 2014. Plaintiff denied that he gave any drugs to anyone, let alone Jessica G. Plaintiff alleged that defendants fabricated the drug sale charge. *See Exhibit 4.*

Defendant Delacruz's Pertinent Deposition Testimony:

Delacruz testified that he knew who plaintiff was and knew where he lived in the neighborhood. He further testified that there was a positive buy on August 26, 2014 and he transmitted that information to defendant Pichardo. He swore that he observed plaintiff give a small object to a female and that Pichardo recovered marijuana from that female and it was field tested by the precinct. *See Exhibit 5.*

Defendant Pichardo's Pertinent Deposition Testimony:

Pichardo testified that he knew on the day of the alleged drug sale that both he and Delacruz knew that their "dealer [was plaintiff]."

Pichardo also testified to one of the discovery issue that Your Honor inquired about:

- Q. Do you know what **flaking is**? (emphasis added)
A. Yes.
Q. What does that mean?
A. When you basically **arrest someone for no reason**. (emphasis added)

Q. Does it mean **planting drugs**? (emphasis added)

A. **Also.** (emphasis added)

Q. Do you know what the allegation was?

.....

A. It says, "prisoner flaking NARCO."

Q. What does that mean?

A. What you just said, that **planting drugs**. (emphasis added).

Pichardo did not seem to recall whether he was questioned by anyone. In another incident another question was asked:

Q. Do you see the allegation there?

A. Yes.

Q. And what does it say?

A. It says, "**prisoner flaking.**" (emphasis added).

Q. Do you know who [sic] the disposition was?

A. "substantiated, case closed."

Pichardo was also accused of associating with and protecting/bribing "narcotic dealers" from the 34th precinct, the same precinct plaintiff was arrested. Pichardo testified that that allegation was also substantiated. *See Exhibit 6.*

Outstanding discovery²:

Defendants have objected to producing the Daily Activity Reports ("DAR") except for August 26, 2014 and August 29, 2014. Plaintiff will withdraw this request for the other DAR so long as defendants are barred from introducing them going forward.

Discovery of Disciplinary Histories:

At the most recent conference before Your Honor, the Court was skeptical about handing over Pichardo's disciplinary files over in discovery. However, in light of the foregoing testimony and defendants' anticipated defenses, plaintiff respectfully requests that such discovery is not only proper and discoverable but might also be admissible at trial.

² There is one item that plaintiff has requested from defense counsel and if there is a further dispute, we would inform the Court.

Misuse of Computer:

Pichardo testified that he was disciplined because he did improper computer search on five (5) separate occasions for his brother (same last name). Plaintiff alleges that this was a pattern by Pichardo to assist drug dealers who paid him money and unlawfully arrest those that did not. If the Court during the *in camera* review finds that Pichardo did indeed search the NYPD computer database for his brother on five (5) separate occasions then we do not need that file. If, however, it turns out that Pichardo lied during his sworn testimony, that information should be turned over to plaintiff as showing a pattern of Pichardo lying under oath to protect his interests and falsely accusing innocent individuals like plaintiff of selling drugs.

Flaking/Shaking Down or Protecting drug dealers/Bribery:

Pichardo has substantiated history of flaking, associating with and protecting/bribed by drug dealers. Pichardo admitted that flaking means arresting “**someone for no reason**” and “**planting drugs on them.**” The substantiated allegations that took place within five years of the allegations giving rise to this lawsuit is not only discoverable as relevant but might also be admissible for impeachment.

Evidence of complaints against police officers may be admissible under Fed. R. Evid. 404(b) where the offering party demonstrates that the complaints share “unusual characteristics” with the conduct at issue so as to “represent a ‘unique scheme.’” *Berkovich v. Hicks*, 922 F.2d 1018, 1023 (2d Cir. 1990).

In addition, Fed. R. Evid. 608 provides that evidence of specific instances of a witness’ conduct concerning the witness’ character for truthfulness may be used to attack his credibility on cross-examination. The defendants’ alleged planting of drugs on the complainant is relevant to their character for truthfulness. The extrinsic acts must share “unusual characteristics” with the act charged or represent a “unique scheme.” *United States v. Benedetto*, 571 F.2d 1246, 1249 (2d Cir. 1978). Although extrinsic evidence may not be used to prove the defendants’ misconduct, plaintiff’s counsel could use information obtained from the complainant for cross-examination. *See Zhao v. City of New York*, 2007 WL 4205856, at *2 (S.D.N.Y. Nov. 21, 2007) (CCRB and IAB complaints involving allegations of dishonesty are discoverable as potential impeachment material); *Barrett v. City of New York*, 237 F.R.D. 40 (E.D.N.Y. 2006) (“CCRB files that . . . are relevant to an officer’s propensity to tell the truth [] will be permitted for discovery purposes”); *Bradley v. City of New York*, No. 04 CIV 8411, 2005 WL 2508253, at *2 (S.D.N.Y. Oct. 3, 2005) (CCRB complaints may influence an assessment of credibility of officers); *Lombardo v. Stone*, 2002 U.S. Dist. LEXIS 1267, at *24-*25 (S.D.N.Y. Jan. 29, 2002); *see also* Fed. R. Civ. P. 26(b)(1) Advisory Committee Notes to 2000 Amendments (“[I]nformation that could be used to impeach a likely witness, although not otherwise relevant to the claims and defenses, might be properly discoverable”). Records concerning the investigation of complaints of a similar nature against a police officer defendant in a section 1983 case may lead to the discovery of evidence “relevant to issues of pattern,

intent, and absence of mistake.” *Wisniewski v. Claflin*, 2007 WL 1120464, at *4-*5 (E.D.N.Y. Apr. 16, 2007).

The allegations in the complaint that plaintiff was essentially “flaked” aka arrested without any reason is consistent with Pichardo’s conduct of doing similar things to other individuals and being disciplined for those actions.

Summary Judgment Motion:

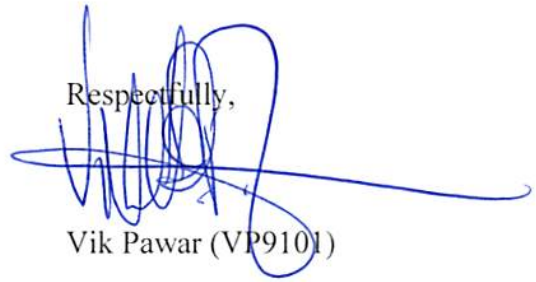
Defendants know plaintiff. Defendants made it clear that plaintiff was engaged in a drug sale on August 26, 2014. Plaintiff denies this fact. It is unclear how in good-faith defendants can proceed with a motion for summary judgment.

Conclusion:

Plaintiff respectfully submits that the IAB file should be turned over (even if it is deemed to be inadmissible at trial) and set this matter down for a trial that would last one day from picking a jury to closing statements.

Thank you.

Respectfully,

A handwritten signature in blue ink, appearing to read 'Vik Pawar', with a long horizontal flourish extending to the right.

Vik Pawar (VP9101)

Cc: Mr. Richard Bradenburg, Esq. (by ECF and email)

EXHIBIT 1

PLAINTIFF'S THIRD AMENDED COMPLAINT

EXHIBIT 1

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
JOSE DELEON,

Plaintiff,

-against-

ELVIN PICHARDO, ELVIS DELACRUZ,

Defendants.
-----X

**THIRD AMENDED
COMPLAINT**

Bench Trial

15 CV 9804 (PGG)

Plaintiff JOSE DELEON (hereinafter "Plaintiff") by and through their attorneys, Vik Pawar, Esq., and Robert Blossner, Esq. respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of their civil rights, as secured by statutes and the Constitution of the State of New York and the United States.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. §§1983, and 1988, and the Fourth and Fourteenth Amendments to the United States and New York Constitutions.

3. Jurisdiction is found upon 28 U.S.C. §§1331 and 1343.

VENUE

4. Venue is properly laid in the Southern District of New York under 28 U.S.C. § 1391(b), in that it is the District in which the claim arose.

PARTIES

6. Plaintiff is a citizen of the United States, and at all relevant time resident in the County of New York, State of New York.

7. The individual Defendants are officers with the NYPD at the time when plaintiff's claims arose. They are sued in their individual and official capacities.

FACTS

8. On August 28, 2014, plaintiff DeLeon was arrested on the street for allegedly making a "drug sale" to a "female" on August 26, 2014. Plaintiff's arrest was based on an alleged "sale observation" by defendant Elvis Delacruz. Defendant Pichardo who knew plaintiff had committed no crime, arrested him anyway.

9. On August 28, 2014, around 1 p.m., plaintiff DeLeon was transported to the 34th precinct for the crime of alleged sale of controlled substances.

10. Plaintiff was thrown against the wall by defendants Pichardo and Delacruz.

11. Plaintiff had his hands violently yanked behind his back and thrown to the ground. Plaintiff offered no resistance. Yet, the defendants put their knees on plaintiff's shoulder blades and forcefully brought how two wrists together and intentionally and tightly placed handcuffs around his wrists.

12. Plaintiff was in excruciating pain.

13. Plaintiff was then transported to the 34th precinct where he was subjected to a full cavity strip-search.

14. No drugs were ever recovered from the plaintiff or from the “alleged sale” two days prior. Plaintiff was held for more than 30 hours.

15. All charges against plaintiff were dismissed in December 2014 because there was no probable cause for the arrest or prosecution of plaintiff and the charges lingered because defendants refused to withdraw their false statements or otherwise show up for court.

AS AND FOR A FIRST CAUSE OF ACTION

(False arrest-Fourth Amendment)

16. Plaintiff repeats, reiterates, and realleges each and every allegation in the foregoing paragraphs with the same force and effect as if fully set forth herein.

17. Defendants had no reason or probable cause to arrest plaintiff.

18. Even though plaintiff offered no resistance, he was yanked, thrown to the ground and had knees placed on him as he was tightly handcuffed and arrested on false charges and strip-searched without just cause.

19. Defendants assaulted him falsely arrested him on fabricated charges that he had made an alleged sale to a “female” two days prior to the arrest.

20. As a result of the aforementioned conduct of Defendants, Plaintiff’s constitutional rights under the Fourth Amendment were violated.

AS AND FOR A SECOND CAUSE OF ACTION

(Deprivation of Rights under 14th Amendment-Due Process/Mal.Pro.)

21. Plaintiff repeats, reiterates, and realleges each and every allegation in the foregoing paragraphs with the same force and effect as if fully set forth herein.

22. The Defendants' conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment. The actions by Defendants deprived the substantive and procedural due process afforded to Plaintiff and was in violation of Plaintiff's constitutional rights under the Fourth and Fourteenth Amendments.

23. Defendants initiated false and baseless proceedings against plaintiff.

24. Defendants knew that if they forwarded the false and unreliable information to the DA's office, plaintiff would be prosecuted.

25. Yet defendants never retracted their false paperwork and continued the prosecution based on malice because they did not want to acknowledge their mistakes.

26. The proceedings were terminated in plaintiff's favor.

27. As a result of the foregoing, Plaintiff was deprived of his rights secured under the Constitution.

WHEREFORE, the Plaintiff requests that this Court:

- a. Award compensatory damages to Plaintiff against the Defendants, jointly and severally, in the amount of TWO HUNDRED THOUSAND DOLLARS for each cause of action;
- b. Award the costs of this action to the Plaintiff.
- c. Award reasonable attorney fees to the Plaintiff under 42 U.S.C. Section 1988 and/or any other applicable laws.
- d. Award punitive damages in an amount determined by the jury;
- e. Award such other and further relief as this Court may deem appropriate.

Dated: New York, New York
December 15, 2016

PAWAR LAW GROUP P.C.
20 Vesey Street, Suite 1210
New York, New York 10007
(212) 571-0805

By:/s
Vik Pawar (VP9101)
Robert Blossner (RB0526)
Attorneys for Plaintiff

EXHIBIT 2

DEFENDANTS' ANSWER

EXHIBIT 2

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

----- X
JOSE DELEON,

Plaintiff,

-against-

ELVIN PICHARDO, ELVIS DELACRUZ,

Defendants.
----- X

**ANSWER TO THIRD
AMENDED COMPLAINT ON
BEHALF OF DEFENDANTS
POLICE OFFICERS ELVIN
PICHARDO AND ELVIS
DELACRUZ**

15-CV-9804 (PGG)

JURY TRIAL DEMANDED

Defendants Police Officer Elvin Pichardo and Police Officer Elvis Delacruz, by their attorney, Zachary W. Carter, Corporation Counsel of the City of New York, for their answer to the Third Amended Complaint, respectfully allege, upon information and belief, as follows:

1. Deny the allegations set forth in paragraph “1” of the Third Amended Complaint, except admit that plaintiff purports to bring this action and seek relief as stated therein.

2. Deny the allegations set forth in paragraph “2” of the Third Amended Complaint, except admit that plaintiff purports to bring this action as stated therein.

3. Deny the allegations set forth in paragraph “3” of the Third Amended Complaint, except admit that plaintiff purports to invoke the Court’s jurisdiction as stated therein.

4. Deny the allegations set forth in paragraph “4” of the Third Amended Complaint, except admit that plaintiff purports to base venue as stated therein.

5. Deny knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph “6” of the Third Amended Complaint.¹

6. Deny the allegations contained in paragraph “7” of the Third Amended Complaint, except admit that, on or about August 26, 2014 and August 28, 2014, Elvin Pichardo and Elvis Delacruz were employed by the New York City Police Department as police officers and that plaintiff purports to bring this action against them as stated therein.

7. Deny the allegations contained in paragraph “8” of the Third Amended Complaint, except admit only that plaintiff was lawfully arrested on August 28, 2014.

8. Deny the allegations contained in paragraph “9” of the Third Amended Complaint, except admit only that plaintiff was transported to the 34th Precinct pursuant to a lawful arrest.

9. Deny the allegations contained in paragraph “10” of the Third Amended Complaint.

10. Deny the allegations set forth in paragraph “11” of the Third Amended Complaint.

11. Deny the allegations contained in paragraph “12” of the Third Amended Complaint.

12. Deny the allegations contained in paragraph “13” of the Third Amended Complaint.

13. Deny the allegations contained in paragraph “14” of the Third Amended Complaint.

¹ There is no paragraph “5” in the Third Amended Complaint.

14. Deny the allegations contained in paragraph “15” of the Third Amended Complaint, except admit only that the charges against plaintiff were dismissed on December 1, 2014.

15. In response to the allegations set forth in paragraph “16” of the Third Amended Complaint, defendants repeat and reallege the responses set forth in paragraphs “1” through “15” inclusive of their answer as if fully set forth herein.

16. Deny the allegations set forth in paragraph “17” of the Third Amended Complaint.

17. Deny the allegations set forth in paragraph “18” of the Third Amended Complaint.

18. Deny the allegations set forth in paragraph “19” of the Third Amended Complaint.

19. Deny the allegations set forth in paragraph “20” of the Third Amended Complaint.

20. In response to the allegations set forth in paragraph “21” of the Third Amended Complaint, defendants repeat and reallege the responses set forth in paragraphs “1” through “20” inclusive of their answer as if fully set forth herein.

21. Deny the allegations set forth in paragraph “22” of the Third Amended Complaint.

22. Deny the allegations set forth in paragraph “23” of the Third Amended Complaint.

23. Deny the allegations set forth in paragraph “24” of the Third Amended Complaint.

24. Object to and deny the embedded assertion regarding “their false paperwork” and deny the remaining allegations set forth in paragraph “25” of the Third Amended Complaint.

25. Deny the allegations contained in paragraph “26” of the Third Amended Complaint, except admit only that the charges against plaintiff were dismissed on December 1, 2014.

26. Deny the allegations set forth in paragraph “27” of the Third Amended Complaint.

AS AND FOR A FIRST AFFIRMATIVE DEFENSE:

27. The Third Amended Complaint fails to state a claim upon which relief can be granted.

AS AND FOR A SECOND AFFIRMATIVE DEFENSE:

28. Defendants have not violated any rights, privileges or immunities under the Constitution or laws of the United States or the State of New York or any political subdivision thereof, or any act of Congress providing for the protection of civil rights.

AS AND FOR A THIRD AFFIRMATIVE DEFENSE:

29. Any injury alleged to have been sustained resulted from plaintiff’s own culpable or negligent conduct or the culpable or negligent conduct of others and was not the proximate result of any act of defendants.

AS AND FOR A FOURTH AFFIRMATIVE DEFENSE:

30. This action may be barred in whole or in part by the applicable statute of limitations period.

AS AND FOR A FIFTH AFFIRMATIVE DEFENSE:

31. Plaintiff’s claims may be barred in whole or in part because plaintiff has failed to comply with all conditions precedent to suit.

AS AND FOR A SIXTH AFFIRMATIVE DEFENSE:

32. Plaintiff failed to mitigate his damages, if any.

AS AND FOR A SEVENTH AFFIRMATIVE DEFENSE:

33. To the extent that the Third Amended Complaint alleges any claims arising under New York State Law, such claims are barred, in whole or in part, for failure to comply with New York General Municipal Law §§ 50(e), 50(h), and/or 50(i).

AS AND FOR A EIGHTH AFFIRMATIVE DEFENSE:

34. There was probable cause for plaintiff's arrest, detention, and prosecution.

AS AND FOR A NINTH AFFIRMATIVE DEFENSE:

35. At all times relevant to the acts alleged in the complaint, defendants Pichardo and Delacruz acted reasonably in the proper and lawful exercise of their discretion.

AS AND FOR A TENTH AFFIRMATIVE DEFENSE:

36. Defendants Pichardo and Delacruz have not violated any clearly established constitutional or statutory right of which a reasonable person would have known and, therefore, are entitled to qualified immunity.

AS AND FOR A ELEVENTH AFFIRMATIVE DEFENSE:

37. At all times relevant to the acts alleged in the Third Amended Complaint, defendants Pichardo and Delacruz acted reasonably and properly in the lawful exercise of their discretion and/or judgmental functions/decisions. Therefore, defendants are entitled to governmental immunity from liability on plaintiff's state law claims.

AS AND FOR A TWELFTH AFFIRMATIVE DEFENSE:

38. Plaintiff's claims may be barred, in whole or in part, by the doctrine of laches, waiver and estoppel.

AS AND FOR A THIRTEENTH AFFIRMATIVE DEFENSE:

39. Plaintiff's claims may be barred, in whole or in part, by the doctrine of res judicata and collateral estoppel.

AS AND FOR A FOURTEENTH AFFIRMATIVE DEFENSE:

40. Plaintiff's claims are barred, in whole or in part, by his own contributory and comparative negligence and by assumption of risk.

AS AND FOR A FIFTEENTH AFFIRMATIVE DEFENSE:

41. Plaintiff provoked any incident.

WHEREFORE, defendants Elvin Pichardo and Elvis Delacruz request judgment dismissing the Third Amended Complaint in its entirety, together with the costs and disbursements of this action, and such other and further relief as the Court may deem just and proper.

Dated: New York, New York
October 10, 2017

ZACHARY W. CARTER
Corporation Counsel of the
City of New York
Attorney for Defendants Pichardo and Delacruz
100 Church Street
New York, New York 10007
(212) 356-2659

By: /s/
Joseph Gutmann
Assistant Corporation Counsel
Special Federal Litigation Division

BY ECF

Vikrant Pawar, Esq.

Attorney for Plaintiff

20 Vesey Street, Suite 1210

New York, NY 10007

EXHIBIT 3

NYPD DOCUMENTS

EXHIBIT 3



NYPD PETS PROPERTY and EVIDENCE
TRACKING SYSTEM
Property Clerk Invoice
PD 521-121 (Rev. 11/08)



Invoice No. 1000543205

Invoking Command 34TH PCT.		Invoice Status OPEN	
Invoice Date 08/26/2014		Property Category ARREST EVIDENCE	
Property Type CONTROLLED SUBSTANCE			
Officer	Rank	Name	Command
Invoking	POM	DELACRUZ, ELVIS	34TH PRECINCT
Arresting	POM	DELACRUZ, ELVIS	34TH PRECINCT
Investigating	N/A		
Det Squad Supervisor	N/A		
CSU/ECT Processing	N/A		
		OCME BU No.	
		OCME FB No.	
		Police Lab Svc. Ctr. No.	
		Det Sq. Case No.	N/A
		CSU/ECT RUN No.	N/A
Item	Qty	Disposition	
1	1	MARIJUANA COLOR: GREEN PACKAGED IN: SMALL ZIP FORM: VEGETATIVE NARCOTIC IS: FIELD TESTED POSITIVE RECOVERED FROM LEFT HAND	
REMARKS: 08/26/2014 18:44 : ABOVE ITEM HAS BEEN VOUCHERED AS ARREST EVIDENCE			
Date Of Incident	Penal Code/Description	Crime Classification	Related To
08/26/2014	PL 221.10/CPM	MISDEMEANOR	MOS COMPL/VICTIM.
Refused			
Prisoner's Name	D.O.B.	Age	Address
1 GUERRERO, JESSICA			
Name	Tax No.	Address	Phone No.
PICARDO, ELVIN			
GUERRERO, JESSICA			
Complaint(s)	PSNY		
Complaint No.	N/A		
Reported Crime No(s)	N/A		
Arrest/Arrested No(s)	N/A		
Released (No. in)	N/A		



Invoice No. 1000543205

Arresting Officer Copy
Printed: 08/26/2014 18:54

PCD Storage No. --

Page No. 1 of 2

DEF 0059



NYPD PETS PROPERTY and EVIDENCE
TRACKING SYSTEM
Property Clerk Invoice
PD 521-141 (Rev. 11/09)



Invoice No. **1000543205**

Approvals	Rank	Name	Tax No.	Complaint	Date	Time
Entered By	POM	DELACRUZ, ELVIS		34TH PRECINCT	08/26/2014	18:39
Invoicing Officer	POM	DELACRUZ, ELVIS		34TH PRECINCT	08/26/2014	18:47
Approved By	SGT	HAYES, BERNARD		34TH PRECINCT	08/26/2014	18:54



Invoice No. **1000543205**

Arresting Officer Copy

Printed: 08/26/2014 18:54

PGS Storage No. --

Page No 2 of 2

Criminal Court of the City of New York
New York County

The People of the State of New York
vs.

DEFENDANT:

JOSE DELEON (M 31)
M14676609 08/29/2014 13:10
40 SHERMAN AVENUE
MANHATTAN NY

CHARGES:

PL 221.40

BOOKET NUMBER:

2014NY067216

Interpreter: Language _____ Screener: _____

Notices Served at Arraignment:

- ☒ CPL 710.30(1)(A) - Statement
☐ CPL 710.30(1)(B) - Identification
☐ CPL 250.20 - Alibi
☐ PL 450.10(48 hrs /15 days) - Property
☐ CPL 170.20 - Grand Jury
☐ Cross Grand Jury
☐ OTHER: _____

Documents:

Served at Arraignment:

- ☐ Supporting Deposition
☐ DMV Abstract
☒ Lab Report Field Test
☐ DWI Paperwork
☐ Domestic Incident
☐ Family Registry
☐ Underlying T.O.P.

Needed For Conversion

- ☐
☐
☐
☐
☐
☐

Adjournment:

Part: B Date: 09/04/14

Bail Condition:

1.5k (Ins. Co. Bond) 1.5k (Cash) (Other) _____

- ☐ ART 730 Exam Ordered
☐ Protective Custody
☐ Medical Attention
☐ Psychiatric Evaluation
☐ Suicide Watch
☐ Deemed an Information
 Defense Motions Due: _____

☐ T.O.P. / F.O.P.

Disposition:

- ☐ ACD - CPL 170.55
☐ ACD - CPL 170.56
☐ Waives Prosecution by Information
 and Pleads Guilty to
 PL 240.20/
☐ Investigation & Sentence Ordered
☐ DNA -Eligible Misdemeanor
☐ DNA Sample Taken

Sentence (or Promise):

_____ days jail
 Conditional Discharge:
 _____ Days Community Service
 _____ Days Jail Alternative
 Other: _____

Mandatory Surcharge (and CVAF):

- ☐ Judgment Entered - All Fees
☐ \$200 Misd. ☐ \$120 Viol. ☐ \$80 VTL*
☐ \$395 VTL1192 Misd.* ☐ \$255 VTL1192(1) Intrac.*
 *(For offenses on or after August 1, 2008)
☐ \$50 - DNA Fee

Arresting Officer	Court Reporter	Date	Part
<u>ELVIN RICHARDO</u>			

Judge: _____

8/30

12:29pm

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

-against-

MISDEMEANOR

Jose DeLeon (M 31),

Defendant.

Police Officer Elvin Pichardo, shield #4287, of the 034 Precinct, states as follows:
The defendant is charged with

PL 221.40

Criminal Sale of marijuana in the Fourth Degree
(1 count)

On or about August 26, 2014 at about 11:15, in front of 30 Dongan Place in the County and State of New York, the defendant knowingly and unlawfully sold marijuana for consideration.

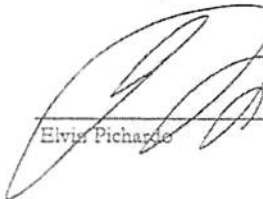
The factual basis for these charges is as follows:

I am informed by Police Officer Elvis Delacruz, shield #15497, of the 034 Precinct, that on August 26, 2014, at approximately 11:15am, in front of 30 Dongan Place, he observed the defendant hand separately charged defendant Jessica Guerrero (arrest #: ~~201408260001~~) a small object in exchange for money. I am further informed by Police Officer Delacruz that he then observed separately charged defendant Guerrero place the small object down her shirt.

On August 26, 2014, at approximately 11:20am, inside of 60 Thayer Street, I observed separately charged defendant Jessica Guerrero remove one clear plastic bag containing marijuana from her shirt and hand it to me using her left hand.

I believe the substance is what it is alleged to be based upon: my professional training as a police officer in the identification of drugs, my prior experience as a police officer making drug arrests, the odor emanating from the substance, an observation of the packaging, which is characteristic of this type of drug and a field test of the substance which confirmed that the substance is in fact what it is alleged to be.

False statements made in this written instrument are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law, and as other crimes.


Elvin Pichardo

8/29/14 0905
Date Time

**CRIMINAL COURT OF THE CITY OF NEW YORK
RECORD OF COURT ACTION**

Date	HOLD _____	☒ Present ☐ Defendant ☐ Attorney	☐ Absent ☐ Defendant ☐ Attorney	☐ Readiness ☐ π ready ☐ π not ready
Part	TT NO S/D PTC 30 days jail	Interpreter _____		
Judge	HON. J. SCH GRANT 9-4-2014 HON. J. SCH GRANT 9-4-2014	Reason for Adjournment ☐ S/D ☐ OFD/Discovery ☐ Possible Disposition ☐ Decision		
Reporter	☐ TOP BC	☐ Hearing ☐ Bench Trial ☐ Jury Trial ☐ Program _____		
Date	HOLD _____	☐ Charged ☐ Excluded	☐ Defendant ☐ Attorney	☐ Defendant Excused
Part	TT F43 S/D TT PTC 30 DT C = info Dmtng	Notify ☐ Defendant ☐ Defendant Excused		
Judge	HON. J. SCH GRANT 12-11-14	Reason for Adjournment ☐ S/D ☐ OFD/Discovery ☐ Possible Disposition ☐ Decision		
Reporter	☐ TOP BC	☐ Hearing ☐ Bench Trial ☐ Jury Trial ☐ Program _____		
Date	HOLD _____	☐ Charged ☐ Excluded	☐ Defendant ☐ Attorney	☐ Defendant Excused
Part	TT Dismissal + Stult	Notify ☐ Defendant ☐ Defendant Excused		
Judge	HON. J. SCH GRANT 12-11-14	Reason for Adjournment ☐ S/D ☐ OFD/Discovery ☐ Possible Disposition ☐ Decision		
Reporter	☐ TOP BC	☐ Hearing ☐ Bench Trial ☐ Jury Trial ☐ Program _____		
TEMPORARY ORDER OF PROTECTION IN EFFECT UNTIL:		TEMPORARY ORDER OF PROTECTION IN EFFECT UNTIL:		

EXHIBIT 4

PORTION OF PLAINTIFF'S DEPOSITION

EXHIBIT 4

J. DELEON

1 A. No.

2 Q. Aside from what we already discussed, did you
3 have any other medical issues on August 26, 2014?

4 A. I don't understand the question.

5 Q. Did you have any medical issues on August 26,
6 2014, or August 28, 2014?

7 A. Those are two different dates.

8 Q. Did you have any medical issues at that time?

9 A. At what time?

10 Q. On either August 26, 2014, or August 28, 2014?

11 A. No.

12 Q. Mr. Deleon, what's the first thing you remember
13 on August 26, 2014?

14 A. August 26, 2014, it was a regular day. I was in
15 my house all day with my kids. And I didn't even -- I
16 stepped out around six p.m., then I came back. I did
17 nothing.

18 Q. You were home at 40 Sherman Avenue?

19 A. Yeah.

20 Q. Did you ever go out before six p.m.?

21 A. No, not in the daytime, evening time which is
22 considered six, six is evening.

23 Q. Sure.

24 A. So, yeah, around that time.

25 Q. And you remember for certain up didn't go out

J. DELEON

1 I guess, restrained or whatever. I'm telling him what I
2 do, what I do. He telling me you know, what you did two
3 days ago. I'm like yo, man, I don't know what you're
4 talking about. He's like you know what you did. He cuffed
5 me right there and my uncle and my brother came, my brother
6 came downstairs. My uncle, my uncle, and my girlfriend
7 came out the car and they wanted to know what was going on.
8 And then what did he do, oh, no, he knows what he did. I
9 was there maybe 25 seconds, they put me in the black car
10 and took me to the precinct.

11 Q. How long were you outside before the officers
12 came to arrest you?

13 A. Sir, it may be seconds, like, I'll say
14 approximately one minute.

15 Q. Were you in the lobby --

16 A. Two minutes. No, I was not in the lobby. I had
17 walked outside my building, made a sharp left and then I
18 made another left into the block.

19 Q. The officers that arrested you, what did they
20 look like?

21 A. Officer Pichardo and Officer Delacruz.

22 Q. They both arrested you?

23 A. Well, those - when I seen the paperwork, they
24 were the ones in the paperwork. So the ones that put the
25 cuffs on me, it was Delacruz. I could be mistaken, sir. I

J. DELEON

1 A. Yeah.

2 Q. You have never sold marijuana to this woman?

3 A. Hell no.

4 Q. Is there anything about this incident that I
5 haven't asked you that you think is important?

6 A. Is there anything -- run that again.

7 Q. Is there anything that I haven't asked you about
8 this incident that you think is important?

9 A. No, you can ask me anything.

10 Q. I'm asking you if is there anything that I
11 haven't asked you that you want to say?

12 A. No, there's nothing.

13 Q. Are you aware that if this case goes to trial and
14 the defendants win, that you might be liable for costs the
15 defendants incurred in defending against your lawsuit?

16 A. Yes, sir, I'm aware of everything.

17 (Continued on next page to include jurat.)

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EXHIBIT 5

PORTIONS OF DELACRUZ'S DEPOSITION

EXHIBIT 5

1 ELVIS DELACRUZ

2 book from 2014?

3 A. I should have it.

4 Q. Before this date which is
5 August 26th, had you seen Jose Deleon?

6 A. Yes.

7 Q. How many times?

8 A. He is always on the same block.

9 I can't give a specific number, but I've
10 seen him a couple of times on the same
11 block.

12 Q. And when you say, "the same
13 block," what block are you referring to?

14 A. On Arden and Sherman Avenue.

15 Q. Do you know if he lives in that
16 neighborhood?

17 A. Yes.

18 Q. Where does he live?

19 A. From my recollection,
20 40 Sherman Avenue.

21 Q. And how do you know that
22 address?

23 A. From previous arrests that were
24 made.

25 Q. Of him?

1 ELVIS DELACRUZ

2 A. No.

3 Q. What year did SNEU get
4 disbanded?

5 A. I would say early 2015.

6 Q. So, it's fair to say that you
7 worked in SNEU from about 2013, to about
8 2015?

9 A. It was about a year and a half.

10 Q. So, that's approximate; right?

11 A. Approximately, yes.

12 Q. Now, what happens when you see
13 what you think is a drug transaction
14 between two individuals?

15 MR. GUTMANN: Objection.

16 A. We would -- generally, we would
17 put over the radio to the catch car the
18 description of the buyer and where they are
19 headed to. And once the catch car
20 apprehends the buyer and notifies us that
21 what we observed is exactly what we
22 observed, that it was some sort of narcotic
23 that they possessed, then we would give
24 them the description of the dealer.

25 Q. Now, on the 26th, were you

1 ELVIS DELACRUZ

2 with him wearing?

3 A. I don't recall what that person
4 was wearing either.

5 Q. And what did you observe
6 Mr. Deleon and this other individual do?

7 A. I observed an exchange for
8 money. The buyer gave money to Deleon and
9 Deleon gave a small object, what seemed to
10 be at the time, marijuana.

11 Q. Okay.

12 Officer Pichardo testified
13 earlier that the drug that he allegedly
14 recovered from the buyer was a dime bag.

15 Would it be fair to say that
16 small object looked like a dime bag?

17 MR. GUTMANN: Objection.

18 A. It look like a small amount of
19 marijuana.

20 Q. Okay.

21 It this right in front of
22 30 Dongan Place where you were seated in
23 your car?

24 A. Yes.

25 Q. So, let me get this straight,

1 ELVIS DELACRUZ

2 Attorney dismissed the case against
3 Mr. Deleon?

4 A. I'm not sure why.

5 Q. Do you think it was possible
6 that it was dismissed because the small
7 object does not really clarify what that
8 object is?

9 MR. GUTMANN: Objection.

10 A. I'm not sure why the District
11 Attorney would -- from what you're telling
12 me, would dismiss this case.

13 Q. Now, did you see -- what did
14 you observe the buyer do with the small
15 object that she took from Mr. Deleon?

16 A. I don't remember what she did
17 with the object that she had, what she
18 bought. I don't remember what she did with
19 it.

20 Q. Did you ever tell Officer
21 Pichardo that she put the object inside her
22 shirt?

23 A. I don't remember if I did that.

24 Q. Is it something important that
25 you would remember?

1 ELVIS DELACRUZ

2 Q. Did Officer Pichardo ever tell
3 you about that?

4 A. I don't remember him speaking
5 of that.

6 Q. Did he ever tell you that he
7 used that to track down Mr. Deleon?

8 A. I don't remember.

9 Q. Did you or anyone you know send
10 the small object that was purportedly a
11 dime bag of marijuana that was recovered
12 from the buyer, send it to the lab for
13 testing?

14 MR. GUTMANN: Objection.

15 A. Whatever was recovered, was
16 field tested by the precinct.

17 Q. By whom?

18 A. Whatever was recovered was
19 field tested at the precinct by me.

20 Q. And how did you field test it?

21 A. There is a kit that is provided
22 to us. It's a marijuana test field kit
23 that that's what we use to test to see
24 whether or not it is actually marijuana.

25 Q. And then after your field test

1 ELVIS DELACRUZ

2 Q. The 61, do you know if the ADA
3 has any input on what information goes in
4 the 61?

5 A. Generally its's the officer
6 that does the 61, the complaint report.

7 Q. And who did the 61?

8 A. For this case I did the 61.

9 Q. If you look at second page of
10 the report --

11 A. The complaint report; right?

12 Q. Yes, the 61.

13 Can you just read that
14 narrative into the record?

15 A. "At TPO, Defendant was observed
16 exchanging small object for USC with
17 apprehended buyer."

18 Q. That's good enough.

19 Is there a reason why you did
20 not put down small object that contained
21 marijuana in there?

22 MR. GUTMANN: Objection.

23 A. Generally, we put small object
24 in the report.

25 Q. But you agree with me, a small

EXHIBIT 6

PORTION OF PICHARDO'S DEPOSITION

EXHIBIT 6

1 ELVIN PICHARDO

2 Q. What does it say?

3 A. A thousand five hundred.

4 Q. When Officer Delacruz radioed
5 you about a -- what was it you said, a
6 positive buy?

7 MR. GUTMANN: Objection.

8 Q. Is that what he said, I don't
9 know what he said; when he radioed you
10 about this Jessica Guerrero what did he say
11 over the radio?

12 A. He put over a description of a
13 female walking northbound on Sherman.

14 Q. And what did he say over the
15 radio?

16 A. He put over the description.

17 Q. What else did he say?

18 A. He said, "our dealer is
19 Deleon."

20 Q. And did he say what allegedly
21 he sold to her?

22 A. Over the radio, no.

23 Q. So, when you walked up to
24 Ms. Guerrero, did you know what you were
25 going to be asking her for?

1 ELVIN PICHARDO

2 Q. What else?

3 MR. GUTMANN: Objection. I'm
4 just going to note this should be
5 limited to anything within the last
6 10 years relating to anything
7 dishonesty or failure to fill out a
8 form you should have or false arrest.

9 MR. PAWAR: I understand.
10 Objection noted. Go ahead?

11 A. Could you repeat the question?

12 Q. Sure.

13 You said you've been
14 disciplined once for using computer
15 unauthorized, what else?

16 MR. GUTMANN: Same objection,
17 same direction to my client.

18 A. That's basically it that I
19 remember.

20 Q. Do you know what flaking is?

21 A. Yes.

22 Q. What does that mean?

23 A. When you basically arrest
24 someone for no reason.

25 Q. Does it mean planting drugs?

1 ELVIN PICHARDO

2 A. Also.

3 MR. PAWAR: Lets mark this as
4 Plaintiff's Exhibit 6.

5 (Whereupon, the aforementioned
6 one-page document was marked as
7 Plaintiff(s)' Exhibit 6 for
8 identification as of this date by the
9 Reporter.)

10 Q. All right, lets look at the
11 first one.

12 Is that the computer thing you
13 were talking about, using the unauthorized
14 computer?

15 A. Yes.

16 Q. Looking at the other incidents,
17 does that jog your memory about the other
18 incidents?

19 A. Yes.

20 Q. Lets start with the one on the
21 bottom?

22 MR. GUTMANN: Before we do that
23 though, off the record for a second.

24 (Whereupon, an off-the-record

25 discussion was held.)

1 ELVIN PICHARDO

2 Q. Lets start from the bottom, did
3 you have a GO-15 for that?

4 MR. GUTMANN: Objection, can
5 you be more specific.

6 MR. PAWAR: First of all, if he
7 understands what I'm saying, you
8 don't have to object. If you don't
9 understand that's not my problem, he
10 is the one who gets the question.

11 A. What day are you talking about.

12 Q. The last incident, 2/14/14?

13 A. Yes.

14 Q. Did you get GO-15 for that?

15 A. Not that I remember.

16 Q. Do you know what the allegation
17 was?

18 A. I'm looking at it right here,
19 but yes, I know what the allegation was.

20 Q. Okay.

21 What was it?

22 A. It says, "prisoner flaking
23 NARCO."

24 Q. What does that mean?

25 A. What does it mean?

1 ELVIN PICHARDO

2 Q. Yes.

3 A. What you just said, that
4 planting drugs.

5 Q. So, somebody alleged that you
6 were planting drugs on the prisoner?

7 A. Yes.

8 Q. And were you questioned by
9 anyone?

10 A. Not that I remember.

11 MR. PAWAR: Call for production
12 of that IAB file.

13 MR. GUTMANN: Objection.

14 Q. Lets go to the one from 6/16 of
15 '09.

16 Do you see the allegation
17 there?

18 A. Yes.

19 Q. And what does it say?

20 A. It says, "prisoner flaking."

21 Q. And were you GO-15 for that?

22 A. Not that I remember today.

23 Q. Do you know who the disposition
24 was?

25 A. Disposition says, "case

1 ELVIN PICHARDO

2 closed."

3 Q. Well, right before that?

4 A. "Substantiated, case closed."

5 Q. When it says, "substantiated,"
6 what does that mean to you?

7 A. I don't know. I don't work in
8 this department.

9 Q. Did you go down to advocate's
10 office?

11 A. Not that I remember.

12 MR. PAWAR: Call for production
13 of that file.

14 MR. GUTMANN: Taken under
15 advisement. Follow-up in writing.

16 Q. Lets move on to the next one,
17 the second one.

18 What's the allegation over
19 there?

20 A. The second one you mean,
21 meaning, 12/15/2008?

22 Q. Yes.

23 A. "Associated with narcotic
24 dealers."

ELVIN PICHARDO

1

2 complaint?

3 A. Yes.

4 Q. Who made that complaint?

5 A. Someone in the area in
6 Washington Heights.

7 Q. The 34th Precinct?

8 A. Yes.

9 Q. How do you know it was somebody
10 from the 34th Precinct?

11 A. Because I was GO'd for this.

12 Q. And did you have your delegate
13 with you?

14 A. I had a lawyer with me.

15 Q. A PBA lawyer?

16 A. Yes.

17 Q. John Burns (phonetic)?

18 MR. GUTMANN: Objection.

19 A. I don't remember the name.

20 Q. And did you go to the
21 Department advocate's office for that?

22 A. No. I went to an office on
23 126th Street or 127th Street.

24 Q. All right.

1 ELVIN PICHARDO

2 incident there's another allegation there,
3 can you say what that says?

4 A. Which one are you talking
5 about?

6 Q. The second line.

7 A. "Unsubstantiated allegation
8 narcotics protect/bribed disposition."

9 Q. Lets stop right there.

10 The first allegation was
11 association with narcotics dealer; right?

12 A. Yes.

13 Q. The second allegation is,
14 narcotics protect/bribe; correct?

15 A. Yes.

16 Q. Was it the same individual who
17 made that allegation?

18 A. That I know of, yes.

19 Q. As you sit here today, you
20 don't know who that person is?

21 A. The person who made the
22 allegation?

23 Q. Yes.

24 A. Yes.

25 Q. Who is it?

1 ELVIN PICHARDO

2 A. I don't know is name today.

3 Q. But you knew it back then?

4 A. Yes.

5 Q. Do you know if he still lives
6 in the neighborhood?

7 A. I don't know.

8 Q. Was he White, Black, Hispanic?

9 A. He was Hispanic.

10 Q. Do you know if he was a drug
11 dealer?

12 A. I never arrested him for
13 actually selling drugs, so I don't know.

14 Q. Why do you think he would make
15 that allegation?

16 A. Because we made arrests in the
17 area where he used to hangout.

18 Q. Do you know if he was a drug
19 dealer?

20 MR. GUTMANN: Objection.

21 A. Personally?

22 Q. Yes.

23 A. No, I don't know.

24 Q. So, as far as you know a law
25 abiding citizen just made an association

1 ELVIN PICHARDO
2 with narcotics dealer and narcotic
3 protection bribe allegation against you;
4 yes?

5 MR. GUTMANN: Objection.

6 Q. Can you repeat that question
7 all over again.

8 MR. PAWAR: Can you read that
9 back.

10 (Whereupon, the referred to
11 question was read back by the
12 reporter.)

13 A. Yes.

14 Q. Now, you see the disposition
15 for that?

16 A. Yes.

17 Q. What was that?

18 A. Substantiated. On 12/15;
19 right?

20 Q. Well, it says, "unsubstantiated
21 allegation" -- "unsubstantiated," I'm
22 sorry.

23 Do you see there's another
24 allegation there?

25 A. Yes, right after

1 ELVIN PICHARDO

2 inquiries for?

3 A. My brother.

4 Q. On five separate dates?

5 A. Yes.

6 Q. Now, if the warrant -- well,
7 what happened the first time that
8 April 17th, when you did a warrant search
9 for your brother?

10 A. I don't remember.

11 Q. Is there a reason why you did
12 the same thing a month later?

13 A. Because I was checking it.

14 Q. You were checking periodically?

15 A. Yes.

16 Q. And this is all for your
17 brother?

18 A. Yes.

19 MR. PAWAR: I call for
20 production of that file as well.

21 Q. How many brothers do you have?

22 A. Two.

23 Q. Besides Alberto, who else?

24 A. Can I give this information?

25 MR. GUTMANN: No.